Cross-Examination of Witnesses
Wadhwa Panel Should Set Aside Order: SC

Justice E. S. Venkataramiah, the presiding judge hearing the Kiran Bedi petitions in the Supreme Court, on Thursday [4 August 1988] reiterated that the order of the Goswamy–Wadhwa Committee regarding examination of witnesses should be set aside.

He observed during the hearing that he was repeating his view for the third time – 'that let the order be set aside, let the commission take a fresh look and make a fresh order which does not look discriminatory.'

The judge said that if this had been done earlier, the court need not have spent the seven days in arguments. 'Otherwise we will have to think over it overnight.'

Justice Venkataramiah also remarked that the lawyers were not really a party in the case. 'We are hearing you only as friends of court.'

For most of the day, Mr K. K. Venugopal, counsel for the lawyers, was reading judgements from English courts affirming his views that there was no accuser or accused in the case and a commission of inquiry can ask a person to depose whenever required.

Counsel also stressed that the argument over Section 8 (B) of the Commission of Inquiry Act was not contemplated when the commission was deciding the basic issue. It was an afterthought to delay the working of the commission, he said.

The lawyer for Mrs Kiran Bedi, former DCP (North), however, contradicted the statement and said that it had been raised several times earlier.

The arguments will continue on Friday …

Mrs Bedi has challenged the procedures of the commission and her exclusion from witnesses given the protection under Section 8 (B). She has also challenged her prosecution for not taking oath before the commission.

(*Indian Express*, 5 August 1988)

Kiran was greatly relieved by all these developments and was back before the Wadhwa Commission. She appealed for another member to head the commission and for a change of venue as also for a lawyer. While the first two requests were not conceded, the third one did mature. K. T. S. Tulsi, a senior advocate of great repute, practising primarily in Chandigarh and a university friend of Kiran, volunteered to take up her case. In fact, his was one of the first voices, as a lawyer, to speak against the lawyers' strike.

But not before Kiran, once again, had to face another situation of declining to come to the witness box. This was because her earlier lawyer, P. P. Grover, had been 'hounded' out. An earthen pot with garlands around its neck, making it appear like an 'urn', was placed at the Tees Hazari courts complex. It was placed there, ostensibly for 'collection'.

The eve of the Delhi Bar Association elections today (Friday) saw [an] earthen pot put up at the Tis Hazari courts complex in the Capital, ostensibly to collect funds in aid of Mr P. P. Grover, advocate, who is representing Mrs Kiran Bedi and other police officers in their case against the lawyers before the Wadhwa Commission – an act which according to Mr Grover has made him the butt of ridicule by other lawyers.